



THE
SUPREME
COURT

SUPREME COURT OF THE VIBE JUSTICE SYSTEM (VJS)

Neutral Citation Number

[2026] REALM-SC 7

IN THE MATTER OF

To what extent are a jurisdiction-repository and its case-law precedent, constituted under the PRIOR judicial standards (the pre-Acts machinery, including the abolished multi-judge first instance and the "Aldermere-on-top" synthesiser pattern), validly constituted and conformant under the enacted Acts of the Realm (Royal Assent 2026-06-06)? How does Bill 25 s.6's saving of "validly-made" prior rulings interact with CASE-LAW s.18(5) (void ab initio, not cured by lapse of time, enacted prospectively)? What conformance obligation does such a legacy repo bear going forward? opbox (CC-OPBOX 1-14) is the test case.

Before:

Hallam CJ, Goffe J, Blackmere J, Sumberly J, Elden J, Coade J, Steyne J, Bowan J,
Aldermere J

Date: **6 June 2026**

REQUEST FOR RULING

JUDGMENT

THE LEAPFROG CERTIFICATE (RECORDED, S.20(3))

1. The Principal, acting as Prime Minister (s.2), certified this matter directly to the Supreme Court: a
2. genuinely constitutional/foundational question binding the precedent of every jurisdiction-repository
3. constituted under the prior judicial standards, turning on the interaction of the entrenched-rank
4. s.18(5) (void ab initio) with the transitional savings of Bill 25 s.6; a lower-tier sitting would add no
5. decisional value. Express, recorded, reasoned. The Court reviewed it for vires and form only (s.20(4)) and
6. held it validly issued.

DISPOSAL

7. VARIED. (1) On the present record, CC-OPBOX 1-11 stand as validly-made and saved (CC-OPBOX 2 retaining
8. its per-incuriam status). (2) CC-OPBOX 12 is REMITTED to a properly-constituted County Court at opbox to
9. determine, on the source record, whether its bench bore the s.18(5) vice. (3) The contention that the opbox
10. base is void as a whole is DISMISSED, as is the contention that every legacy entry is saved without inquiry.
11. (4) opbox is recorded CONFORMANT-PROJECTION under Bill 20 and is NOT quarantined.

ENACTS

12. No new statute enacted. The Court considered and declined Aldermere J's proposed s.23, resting on the
13. existing settlement correctly construed (Bill 25 s.6(2) read with CASE-LAW s.18(5), disciplined by the
14. entrenchment bar). Should the Sovereign wish to place the construction beyond doubt, the lawful route is an
15. express deliberate amendment citing s.18 (and, if the constitutional temporal scope is touched, s.10) by
16. number; it is not necessary and the Court does not direct it.

OVERRULES

17. No rulings overruled. [2026] REALM-SC 4 (enacting s.18) is affirmed and applied; its "voidable" minority
18. reasoning remains non-binding obiter (s.11(e)) and is not revived.

CONCURRENCES (THE COURT DIVIDED ON ROUTE, NOT RESULT; 9:0 ON DISPOSAL)

19. Hallam CJ (leading): s.6(2) carves out the void; s.18(5) prospective in reach, deep/incurable in quality.
20. Steyne J (full): the reach/quality frame + the entrenchment bar. Elden J: the rule against retrospectivity
21. + a duty to note prior-machinery provenance (adopted into the forward obligation). Sumner J: improper
22. constitution is the gravest vice but authored by s.18(5) and biting only prospectively; validity is a found
23. fact. Blackmere J (result; route): the estate is protected by the narrowness of the vice, not a date
24. cut-off. Coade J (with Blackmere): granular, void only on a found improper bench. Goffe J (workability):
25. both pure readings fail; "void" means void as binding ratio, not demolition; bound by his REALM-SC 4
26. minority. Bowan J: found s.6(2) the keystone; voidness is a found fact, never presumed; bound by his
27. REALM-SC 4 minority. Aldermere J (result): would have enacted s.23; the Court declined.

1. A jurisdiction-repository's pre-enactment case-law is not validly assessed as a binary "saved or void"; validity is determined entry-by-entry on the deterministic source record, never as a wholesale verdict on the repository. 2. Bill 25 s. 6 and CASE-LAW s. 18(5) do not collide. Bill 25 s. 6(1) saves only every VALIDLY-MADE prior ruling, and Bill 25 s. 6(2) provides that "validly-made" is qualified by the existing validity rules and saves nothing decided *per incuriam* (s. 11(e)) or void *ab initio* (s. 18(5)); such matters take their existing status and are not revived. The savings clause and the voidness clause interlock: s. 6 saves what was validly made, s. 18(5) defines a category never validly made, and an ordinary savings Act cannot impliedly revive a s. 18(5)-void ruling nor amend the entrenched rule of lawful constitution. 3. CASE-LAW s. 18(5) is PROSPECTIVE in reach. Its closing words ("enacts the majority rule prospectively") fix the date from which the void-not-voidable standard operates (benches constituted on or after commencement, 2026-06-06). The phrases "void *ab initio*" and "not cured by lapse of time" fix the QUALITY and incurability of the vice for a bench the rule reaches (total from inception, incurable by delay, acquiescence, or soundness of result), not the rule's temporal reach. Reach and quality are different axes; the parenthetical settles reach. 4. The prospective construction is compelled by the entrenchment lock: s. 10 (bench sizes; odd and exhaustive character) is a constitutional, entrenched article, while s. 18(5) is ordinary. Reading s. 18(5) to reach back and void benches that complied with the composition standards in force when they sat would retrospectively amend the entrenched court-structure article by implication, which Bill 15 s. 3 / s. 8 and Bill 25 s. 2(2) render void to that extent; the only *intra vires* construction is the prospective one. 5. The s. 18(5) vice is a finding of fact on a specific bench (a deciding set that was even, or a deciding voice added on top of the sized panel, s. 18(4)), on which the party asserting it bears the burden. It is not presumed from the age of a citation or from provenance-reconstitution, and it is not infectious down the citation graph: a later, lawfully constituted ruling is not voided merely by citing a void ruling. A single-judge first-instance ruling is the paradigm of a correctly constituted bench (odd, no synthesiser-on-top) and is saved. 6. A legacy repository owes no obligation to reconstitute or re-litigate sound precedent. Its forward duties are restorative and graded: (a) apply the new machinery (correct odd bench size, judgment authored by a counted member) to all new matters; (b) carry the true status of each legacy entry on the deterministic record by append-with-supersede, marking "void" only where a specific entry is found to rest on an improperly constituted bench, with re-determination crystallising on reliance or challenge, never erasure; (c) maintain integrity-chain conformance, the trust status being the deterministic output of the s. 19(5) gate and git, not an office's certificate. Marking a ruling void

preserves conformance rather than threatening it. Any executive act voiding rulings in bulk by reason only of commencement is ultra vires.

OBITER DICTA

Considerations of "absurdity" and pure workability reach the same prospective destination but are obiter and form no part of the ratio; a bench saves a ruling not because voiding it would be inconvenient but because the rule that would void it does not reach it. The Court considered and declined to enact Aldermere J's proposed s. 23 (codifying a transitional validity test and triage duty), preferring to rest on the existing text correctly construed; a transitional point self-limited by its own statute (Bill 25 s. 6(2)) needs no fresh article. Should the Sovereign wish to place the construction beyond doubt, the lawful route is an express, deliberate amendment citing s. 18 (and, if the constitutional temporal scope is touched, s. 10) by number. Per Elden J (adopted into duty (2)), saved precedent should carry a note of its prior-machinery provenance where known, so a future reader is not misled about how an old ratio was reached. Bill 16 s. 9(3) preserves the citation as a valid handle, not the validity: a valid handle to a void ruling is a tombstone, not an orphan.

GOOD-LAW

Citation: [2026] REALM-SC 7

Handed down by the SUPREME COURT of the Vibe Justice System (VJS). 6 June 2026.